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TENTATIVE RULING

Defendants Sean Combs, Daddy's House Recordings, Inc., CE OPCO, LLC d/b/a Combs Global f/k/a Combs Enterprises LLC, Bad Boy Entertainment Holdings, Inc., Bad Boy Books Holdings, Inc., Bad Boy Entertainment LLC, and Bad Boy Productions, LLC's Demurrer to Plaintiff's Complaint is OVERRULED in part, and SUSTAINED WITH LEAVE TO AMEND IN PART.

The demurrer to the first cause of action is sustained with leave to amend as to the Corporate Defendants. The demurrer to the second cause of action is overruled as to Combs and sustained without leave to amend as to the Corporate Defendants. The demurrer to the third cause of action is sustained with leave to amend as to all Defendants.

Defendants Sean Combs, Daddy's House Recordings, Inc., CE OPCO, LLC d/b/a Combs Global f/k/a Combs Enterprises LLC, Bad Boy Entertainment Holdings, Inc., Bad Boy Books Holdings, Inc., Bad Boy Entertainment LLC, and Bad Boy Productions, LLC's Motion to Strike portions of Plaintiff's Complaint is DENIED.

Plaintiff Lakeisha Ward may file and serve an amended complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(g).)

Moving parties to give notice.

REASONING

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Uncertainty

Defendants demur to all three causes of action on the ground they are uncertain as to the Corporate Defendants. Code of Civil Procedure section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616.)

The allegations in the complaint are sufficiently clear that Plaintiff is attempting to hold Defendants liable for sexual assault, gender violence, and negligent supervision and retention. Defendants' demurrer is overruled on the grounds of uncertainty.

Statute of Limitations

Defendants demur to all three causes of action on the grounds they are barred by the applicable statutes of limitation.

Code of Civil Procedure section 340.16 governs civil actions for damages suffered as a result of a sexual assault occurring on or after the plaintiff's 18th birthday. (Code Civ. Proc., § 340.16, subd. (a).) An action for sexual assault shall be commenced on the later of the following: “within 10 years from the date of the last act, attempted act, or assault with the intent to commit an act, of sexual assault against the plaintiff,” or “within three years from the date the plaintiff discovers or reasonably should have discovered that an injury or illness resulted from an act, attempted act, or assault with the intent to commit an act, of sexual assault against the plaintiff.” (Code Civ. Proc., § 340.16, subds. (a)(1)-(2).)

Here, Plaintiff alleges the assault occurred in 2018, and filed suit in 2025, falling within the ten-year period. Therefore, Plaintiff's first cause of action is not barred by the statute of limitations.

Further, Code of Civil Procedure section 340.16 applies to an entire civil action seeking recovery of damages suffered as a result of sexual assault. (See Code Civ. Proc., § 340.16; see also *Jane Doe #21 (S.H.) v. CFR Enters., Inc.* (2023) 93 Cal.App.5th 1199,1211.) Claims based on conduct occurring on or after January 1, 2009, commenced on or after January 1, 2019, that would otherwise be time-barred, are permitted to be commenced until December 31, 2026. (Code Civ. Proc., § 340.16, subd. (b)(3).)

As discussed above, Plaintiff's alleged assault sits squarely within the revival windows, and the date she filed suit falls before the December 31, 2026, deadline. Accordingly, Plaintiff's second and third causes of action are not barred by the statute of limitations.

Defendants' demurrer based on the grounds of statute of limitations is overruled.

First Cause of Action: Sexual Assault

Civil Code section 1708.5, subdivision (a), states that “[a] person commits a sexual battery who does any of the following: [¶] (1) Acts with the intent to cause a harmful or offensive contact with an intimate part of another, and a sexually offensive contact with that person directly or indirectly results. [¶] (2) Acts with the intent to cause a harmful or offensive contact with another by use of his or her intimate part, and a sexually offensive contact with that person directly or indirectly results. [¶] (3) Acts to cause an imminent apprehension of the conduct described in paragraph (1) or (2), and a sexually offensive contact with that person directly or indirectly results.” Subdivision (b) of Civil Code section 1708.5 makes “[a] person who commits a sexual battery upon another [¶] liable to that person for damages, including, but not limited to, general damages, special damages, and punitive damages.”

Defendants demur to the first cause of action on the grounds it fails to state facts sufficient to constitute a cause of action against Corporate Defendants and is uncertain as to Corporate Defendants.

The Complaint fails to sufficiently allege facts against the Corporate Defendants to support a cause of action for sexual assault. The Complaint alleges the following. The sexual assault by Combs was ratified and/or perpetrated by the Corporate Defendants. (Compl., ¶ 53.) The Corporate Defendants enabled and conspired with Combs to commit the offending sexual battery because Combs sexually assaulted Plaintiff at a party related to the Corporate Defendants. (Compl., ¶ 56.) The Corporate Defendants routinely committed sexual assault and sexual battery to further the business purpose of Combs’ enterprise. (Compl., ¶ 56.) Corporate Defendants failed to protect Plaintiff from a known danger or have sufficient policies in place. (Compl., ¶ 57.) The Complaint does not allege any Corporate Defendants were present at, participated in, or committed any act toward Plaintiff in connection with the alleged assault. Conclusory statements are not admitted on demurrer.

Further, ratification and alter ego are not sufficiently plead. Ratification “occurs when the principal accepts the benefit of the agent’s act either with actual knowledge of the material facts or with knowledge of facts that would have led a reasonable person to investigate further.” (Brown v. DirecTV, LLC (2021) 562 F. Supp. 3d 590, 610.) Plaintiff alleges the sexual assault act was ratified by the Corporate Defendants, however Plaintiff does not allege facts that the Corporate Defendants learned of, investigated, or approved of Plaintiff’s alleged sexual assault. (Compl., ¶ 53.)

“In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone.” (Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538.) “Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other,” or “inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers.” (Ibid.)

Here, the Complaint merely alleges the Corporate Defendants are alter egos of Combs and that Plaintiff alleges Combs owned and/or controlled the Corporate Defendants. (Compl., ¶¶ 24, 28, 29, 32.) However, Plaintiff does not allege any facts that there was commingling of funds, that one entity is liable for the debts of another, disregard of corporate formalities, or lack of segregation of corporate records.

Accordingly, the demurrer to the first cause of action is sustained with leave to amend as to the Corporate Defendants.

Second Cause of Action: Gender Violence

Civil Code section 52.4, subdivision (a), allows “[a]ny person who has been subjected to gender violence” to “bring a civil action for damages against any responsible party,” and “[t]he plaintiff may seek actual damages, compensatory damages, punitive damages, injunctive relief,” and attorney’s fees and costs. “[G]ender violence’ is a form of sex discrimination” and means either an act “that would constitute a criminal offense under state law that has as an element the use, attempted use, or threatened use of physical force against the person or property of another, committed at least in part based on the gender of the victim, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction,” or “[a]

physical intrusion or physical invasion of a sexual nature under coercive conditions, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction.” (Civ. Code, § 52.4, subd. (c).)

Defendants demur to the second cause of action on the grounds it fails to state facts sufficient to constitute a cause of action for gender violence as to all Defendants.

As to Combs, the Court finds the Complaint sufficiently alleges a cause of action for gender violence. Defendants argue the Complaint fails to plead gender-based motivation, relying on *Doe v. Kachru* (2025) 115 Cal.App.5th 175, which held that “some discriminatory motivation is a requisite element” of a section 52.4 claim. (*Doe v. Kachru* (2025) 115 Cal.App.5th 175, 198.) This argument does not defeat the claim at the demurrer stage, because Plaintiff pleads the alternative definition in subdivision (c)(2), a physical intrusion of a sexual nature under coercive conditions, and the allegations of the complaint satisfy that definition.

The Complaint alleges the following. Plaintiff is a female residing in Clark County, Nevada. Plaintiff was invited to the party where she was subsequently sexually assaulted. Defendants’ acts committed against Plaintiff constitute gender violence and a form of sex discrimination that would constitute a criminal offense under state law and was committed at least in part based on the gender of the victim. (Compl. ¶¶ 23, 35-44, 65.) For purposes of demurrer, Plaintiff’s allegations are taken as true. This is sufficient to support a cause of action of gender violence against Combs. Defendants’ demurrer is overruled as to the second cause of action as to Combs.

As to the Corporate Defendants, the Complaint fails to sufficiently allege a cause of action for gender violence. “Notwithstanding any other laws that may establish the liability of an employer for the acts of an employee, this section does not establish any civil liability of a person because of his or her status as an employer, unless the employer personally committed an act of gender violence.” (Civ. Code, § 52.4, subd. (e).) The Complaint does not allege any Corporate Defendants personally committed an act of gender violence, only alleging the Corporate Defendants enabled, failed to supervise, or ratified Combs’s actions. Further, because a corporation cannot personally commit an alleged sexual assault, there is no room to amend. Accordingly, Defendants’ demurrer is sustained without leave to amend as to the second cause of action as to the Corporate Defendants.

Third Cause of Action: Negligent Supervision and Retention

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer’s hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.) The theory applies only where a person or entity in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the wrongful act. (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.)

Defendants demur to the third cause of action on the grounds it fails to state facts sufficient to constitute a cause of action for negligent supervision and retention against all Defendants.

The Complaint fails to sufficiently allege a cause of action for negligent supervision and retention. The Complaint alleges Combs owned and/or controlled the Corporate Defendants. (Compl., ¶ 24.) The Complaint alleges the Corporate Defendants enabled and conspired with Combs to commit the offending sexual battery by failing to properly supervise or to protect Plaintiff from a known danger. (Compl., ¶¶ 74-77.) The Complaint alleges the Corporate Defendants actively placed, maintained, or employed Combs in a position of power, despite the knowledge that Combs had a widespread and well-known practice of committing sexual assault. (Compl., ¶ 77.)

However, none of these allegations support a cause of action for negligent supervision and retention. No person or entity is plead to have occupied a supervisory position over Combs. Indeed, the alter-ego theory Plaintiff advances to reach the entities on the other causes of action is in tension with the negligent supervision cause of action. An entity that is a mere

instrumentality “completely dominated” by Combs cannot simultaneously be an independent supervisor who could have controlled him. Further, as against Combs, the claim fails as a matter of law. The perpetrator of a sexual assault cannot be the supervisor charged with negligently failing to prevent his own act.

Accordingly, Defendants’ demurrer is sustained with leave to amend as to the third cause of action as to all Defendants.

Motion to Strike

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Defendants move to strike portions of Plaintiff’s Complaint, namely references Combs’ history of other allegations involving other individuals, incidents, or lawsuits.

A motion to strike is disfavored and reaches only “irrelevant, false, or improper matter,” and should be used “cautiously and sparingly.” (Code Civ. Proc., 436, subd. (a); PH II, Inc. V. Superior Court (1995) 33 Cal.App.4th 1680, 1682-1683.) The challenged portions of Plaintiff’s Complaint of Combs’ history are relevant to the matters that remain. The allegations of prior misconduct may bear on notice and motive, as well as punitive damages against Combs and the gender violence cause of action. Further, Defendants’ concern that the allegations invite an improper propensity inference is better addressed through objections to evidence, not by excising the allegations at the pleading stage.

Accordingly, Defendants’ motion to strike is denied.